

24STCV14267 24STCV14267

County: los-angeles

Division: Civil Law and Motion

Department: 513

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Case Number: 24STCV14267 Hearing Date: September 1, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Kristine Klotz

;

Plaintiff,

vs.

City of Los Angeles

, et al.,

Defendants.

Case No.:

24STCV14267

Hearing Date:

September 1, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion

for Production of Evidence Pursuant to Evidence Code section 1043 (Pitchess Motion)

MOVING PARTY: Plaintiff Kristine Klotz

RESPONDING

PARTY: Defendant City of Los Angeles

Motion for

Production of Evidence Pursuant to Evidence Code Section 1043 (Pitchess Motion)

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

LEGAL

STANDARD

There is a special two-step
procedure for obtaining disclosure of peace or custodial officer personnel
records. (Warrick
v. Superior Court (2005) 35 Cal.4th 1011, 1019.) First, the party seeking disclosure must
file a motion that includes all of the following:

Identification of the proceeding in which discovery or
disclosure is sought, the party seeking discovery or disclosure, the peace
or custodial officer whose records are sought, the governmental agency
that has custody and control of the records, and the time and place at
which the motion for discovery or disclosure shall be heard.

A description of the type of records or
information sought.

Affidavits showing good cause for the discovery or disclosure sought, setting forth the materiality thereof to the subject matter involved in the pending litigation and stating upon reasonable belief that the governmental agency identified has the records or information from the records.)))

(Evid. Code, § 1043, subd. (b).))))

The “good cause” declaration must be sufficiently specific “to preclude the possibility of [the movant] simply casting about for any helpful information.”) (People v. Mooc (2001) 26 Cal.4th 1216, 1226.) The moving party need show only a “plausible factual foundation” for discovery -- i.e., a scenario of officer misconduct that might occur or could have occurred. (Warrick, supra, 35 Cal.4th at p. 1026; see also Blumberg v. Superior Court (2011) 197 Cal.App.4th 1245, 1248 [“[T]he good cause requirement embodies a “relatively low threshold” for discovery’ [citation], under which a defendant need demonstrate only ‘a logical link between the defense proposed and the pending charge’ and describe with some specificity ‘how the discovery being sought would support such a defense or how it would impeach the officer’s version of the events’ [citation].”]; Becerrada v. Superior Court (2005) 131 Cal.App.4th 409, 413 [“A showing of good cause is measured by ‘relatively relaxed standards’ that serve to ‘insure the production’ for trial court review of ‘all potentially relevant documents’”].) A declaration by counsel, on information and belief, may be sufficient.) (People v. Oppel (1990) 222 Cal.App.3d 1146, 1153, fn. 6.))))

Second, if the court finds good cause, then an in camera examination must be held.) (Slayton v. Superior Court (2006) 146 Cal.App.4th 55, 61.) After examining the records in camera, the trial court shall order disclosure of peace officer personnel records that are ““relevant to the subject matter involved in the pending litigation.”” (People v. Mooc, supra, 26 Cal.4th at p. 1226.) The court must exclude from disclosure “[f]acts sought to be disclosed that are so remote as to make disclosure of little or no practical benefit.” (Evid. Code, § 1045, subd. (b)(2).) “In

determining relevance where the issue in litigation concerns the policies or pattern of conduct of the employing agency, the court shall consider whether the information sought may be obtained from other records maintained by the employing agency in the regular course of agency business which would not necessitate the disclosure of individual personnel records.”² (Evid. Code, § 1045, subd. (c).)² If disclosure is ordered, the court must

also order that the disclosed information may not be used “for any purpose other than a court proceeding pursuant to applicable law.”² (Evid. Code, § 1045, subd. (e).)²²

DISCUSSION

Plaintiff

Kristine Klotz (“Plaintiff”) moves the court for an order, pursuant to Evidence Code section 1043, directing defendant City of Los Angeles (“Defendant”) to make available documents that are responsive to the following 46 categories:

1.

Any

and all writings relating to any and all LAPD investigation(s) into any and/or all of the allegations of the instant lawsuit.

2.

Any and all complaints against the OFFICERS [Captain Robin Petillo, Captain Scot Williams, Deputy Chief Marc Reina, Lieutenant Blanca Lopez, Lieutenant James Mylonakis, Commander Jay Mastick, Deputy Chief Kris Pitcher, Chief Michel Moore, and Detective Christopher Marsden], from any source, relating to sexual harassment, gender discrimination and harassment, and/or retaliation related thereto and for reporting other unlawful conduct.

3.

Any

and all investigations of any and all complaints described in Items No. 2, above, including but not limited to the conclusions of any officer investigating a complaint filed pursuant to Section 832.5 of the Penal Code (filed by a member of the public).

4.

Any and all discipline imposed as a result of any and all investigations of any and all complaints described in Items No. 2,

above.

5.

All

TEAMS reports of the OFFICERS.

6.

Any

and all writings relating to the education, background, and/or training on sexual harassment, gender discrimination and harassment, and/or retaliation by the OFFICERS.

7.

Any

and all reprimands including but not limited to Comment Cards and Notices to Correct, pertaining to sexual harassment, gender discrimination and harassment, and/or retaliation issued to the OFFICERS.

8.

Any and all performance assessments, including but not limited to Performance Evaluation Reports and Standards Based Assessments pertaining to sexual harassment and gender discrimination and harassment, and/or retaliation related to the OFFICERS.

9.

Any and all writings related to LAPD Internal Affairs Complaint CF No. 23- 003246, and any Administrative Appeal thereof

10. Any and all writings related to

LAPD Internal Affairs Complaint CF No. 23-003481, and any Administrative Appeal thereof

11. Any and all writings related to

LAPD Internal Affairs Complaint CF No. 23- 002587, and any Administrative Appeal thereof,

12. Any and all writings related to

LAPD Internal Affairs Complaint CF No. 23- 001884, and any Administrative Appeal thereof,

13. Any and all writings related to

LAPD Internal Affairs Complaint CF No. 23- 003147, and any Administrative Appeal thereof,

14. 14. Any and all writings related

to LAPD Internal Affairs Complaint CF No. 24- 000465, and any Administrative Appeal thereof,

15. Any and all writings related to

LAPD Internal Affairs Complaint CF No. 24- 000616,

16. Any and all writings related to

LAPD Internal Affairs Complaint CF No. 24- 000785, and any Administrative Appeal thereof,

17. Any and all writings related to

LAPD Internal Affairs Complaint CF No. 25- 000443, and any Administrative Appeal thereof,

18. Any and all writings related to

LAPD Internal Affairs Complaint CF No. 23- 003064, and any Administrative Appeal thereof,

19. Any and all writings related to

LAPD Internal Affairs Complaint CF No. 23- 003921, and any Administrative Appeal thereof,

20. Any and all writings related to

LAPD Internal Affairs Complaint CF No. 24- 000147, and any Administrative Appeal thereof,

21. Any and all writings related to

LAPD Internal Affairs Complaint CF No. 24- 000818, and any Administrative Appeal thereof,

22. Any and all writings related to

LAPD Internal Affairs Complaint CF No. 25- 002706, and any Administrative Appeal thereof,

23. Any and all writings related to

LAPD Internal Affairs Complaint CF No. 23- 003922, and any Administrative Appeal thereof,

24. Any and all writings related to
LAPD Internal Affairs Complaint CF No. 24- 002976, and any Administrative Appeal thereof,

25. Any and all writings related to
any and all LAPD Internal Affairs Complaints related to or generated based on any allegation in Plaintiff's September 17, 2023 letter attached as Exhibit A to the Second Amended Complaint,

26. Any and all writings related to
any and all LAPD Internal Affairs Complaints related to or generated based on any allegation in Plaintiff's Second Amended Complaint,

27. Any and all writings related to
any and all LAPD Internal Affairs Complaints related to or generated based on any allegation or complaint made by Plaintiff against any of the OFFICERS,

28. Any and all writings related to
any and all LAPD Internal Affairs Complaints related to or generated based on any allegation or complaint made by any of the OFFICERS against Plaintiff,

29. Any and all writings related to any and all
LAPD Internal Affairs Complaints against Plaintiff,

30. All documents relating to Plaintiff's
downgrade from Detective III to Detective I,

31. All documents relating to
Plaintiff's administrative transfer from Robbery Homicide Division to Van Nuys Division in November 2023,

32. All documents relating to Plaintiff's removal
from the position of Captain's Adjutant at Robbery-Homicide Division,

33. All documents relating to Plaintiff's
reinstatement to Detective III rank,

34. All documents relating to Plaintiff's Injured on Duty (IOD) claim filed on or about November 29, 2023, Case No. 2023-00302, Claim No. 4071634,
35. All documents relating to disciplinary actions taken or recommended against any of the OFFICERS arising out of the matters alleged in Plaintiff's complaint,
36. All documents relating to the Ombuds Section workplace assessment conducted at Robbery-Homicide Division in approximately September 2023 through November 2023,
37. All documents concerning the investigation into allegations of workplace harassment, discrimination, and retaliation at Robbery-Homicide Division involving Plaintiff,
38. All documents relating to Plaintiff's separation from Detective Jennifer Hammer as partners in September 2023,
39. All documents relating to the involuntary loan of Plaintiff to the Commercial Crimes Division Organized Retail Theft Task Force at Van Nuys Division in or around August 2023,
40. All documents relating to the return of Plaintiff to Robbery-Homicide Division in or around September 2023,
41. All documents relating to the assignment of Plaintiff to the South Bureau Squad in or around September 2023,
42. All documents relating to any order that Plaintiff stay away from the sixth floor of the Police Administration Building and/or not contact Robin Petillo,
43. All documents relating to Lieutenant Mylonakis's December 2023 annual performance assessment for Plaintiff,
44. Any and all documents relating to the POST Affidavit of Separation (Form POST 2-357) completed in connection

with Plaintiff's retirement from the Los Angeles Police Department on January 31, 2025,

45. All writings, memoranda, forms, correspondence, or other documents relating to any and all transfers, reassignments, loan assignments, temporary or permanent downgrades, reinstatements, or changes in duties or work locations of Plaintiff during the period January 1, 2023, through the present,

46. All performance evaluations, standards-based assessments, review forms, annual ratings, comments, or any other assessments of Plaintiff's performance, including drafts, versions, and corrections, prepared during the period January 1, 2023, through the present.

First, the court finds that Plaintiff has established that the information sought by categories 5 and 6 is material to Plaintiff's claims because the records sought pertain to the patterns of conduct of the officers named in the pleadings. (Evid. Code § 1043; SAC pp. 4 – 7; Lipscomb Decl. ¶¶ 21-22.)

Second, the court finds that Plaintiff has established that the information sought by categories 9 through 24 is material to Plaintiff's claims of discrimination, retaliation, and harassment insofar as the internal affairs complaints and appeals referenced by these categories are either alleged in the pleadings or named in Defendant's discovery responses. (Evid. Code, § 1043; SAC pp. 5:22 - 7:13; Lipscomb Decl. ¶¶ 25-39.) However, the court finds that the categories as phrased by Plaintiff are overbroad and unduly burdensome in that they require Defendant to produce not merely the internal affairs complaints and administrative appeals, but any writing pertaining to those complaints. The court therefore will only require Defendant to produce the internal affairs complaint files and administrative appeals files.

Third, the court finds that Plaintiff has established that the information sought by categories 29 through 34 is material to Plaintiff's claims that LAPD retaliated against her because the documents pertain to conduct which she contends constitute adverse employment actions. (Evid. Code, § 1043; SAC ¶¶ 30, 46; Lipscomb Decl. ¶¶ 40-45.)

Fourth, the court

finds that Plaintiff has established that the information sought by categories 36 through 46 is material to Plaintiff's claims that LAPD officers discriminated against her, harassed her, and retaliated against her because they are, on their face, documents pertaining to the incidents alleged in the pleadings. (Evid. Code, § 1043; SAC pp. 5:22 - 7:13.)

Finally, the

court finds that Plaintiff has not established good cause for the discovery of documents and information set forth in the remaining categories documents because the categories, as described, are so overbroad as to include records that are not material to the subject matter involved in the pending litigation. (Evid. Code, § 1043, subd. (b)(3).) The court therefore denies the motion as to the remainder of the requests.

ORDER

The court grants

in part plaintiff Kristine Klotz's motion for production of documents pursuant to Evidence Code section 1043 (Pitchess motion) as follows:

The court orders

the custodian(s) of records for the City of Los Angeles to appear and produce the documents set forth below for an in camera review by the court on October 16, 2026, at 1:30 p.m., in Department 513.

The court orders

the custodian(s) of records for the City of Los Angeles to produce documents responsive to categories 5, 6, 29 through 34, and 36 through 46 as set forth in Plaintiff's notice of motion.

The court orders

the custodian(s) of records for the City of Los Angeles to produce only the internal affairs complaint files and any administrative appeals files thereof for the complaints identified in categories 9 through 24 as set forth in Plaintiff's notice of motion.

The court orders

that all such documents shall be produced for an in camera examination by the court. The court will conduct an in camera examination of the records to determine the relevance

of the materials to this action.¿

(People v. Gill (1997) 60 Cal.App.4th 793, 749.)¿ The scope of the in camera examination will be governed by Evidence Code section 1045, subdivisions (b) and (c).¿¿¿

The court orders plaintiff

Kristine Klotz to give notice of this ruling.

IT IS SO ORDERED.

DATED: September 1, 2026

Robert B. Broadbelt III

Judge of the Superior Court